

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 04/23/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C25-00378
CASE NAME: ALEXIA GELINAS VS. CONNOR LEWIS
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH SUBPOENA FOR PSYCHOTHERAPY RECORDS
FILED BY: LEWIS, CONNOR
TENTATIVE RULING:

Defendant's Motion to Compel compliance with subpoena for Plaintiff's psychotherapy records from Jennifer Oetinger, LMFT is GRANTED, but with the modification that the documents shall be produced to the court for an initial in camera review and will be released to the defense subject to a protective order. Discussed in detail, *infra*.

DISCLOSURE: This Judge's child currently attends Monte Vista High School and has attended that school since August 2023. This Judge is not familiar with the Plaintiff in this matter or their family based on the information known.

Additionally, this Judge could not determine from the briefing whether the criminal case related to this matter was prosecuted in Alameda or Contra Costa County. If the matter was prosecuted in Contra Costa County, this Judge makes the disclosure that their spouse is the chief assistant district attorney with the Contra Costa County District Attorney's Office. This Judge does not know any information about the criminal matter related to this case aside from what was mentioned in the briefs by the parties to this civil action.

In this case, Plaintiff alleges that Defendant caused physical and emotional injuries to Plaintiff, a minor at the time, following an incident occurring on May 21, 2022. Defendant is also alleged to have unlawfully gained access to Plaintiff's Snapchat account, and shared personal and confidential photos within that account with others. Plaintiff filed this civil lawsuit seeking damages for the physical and emotional injuries she suffered and emotional distress.

One month following the incident, Plaintiff began seeing Licensed Marriage and Family Therapist (LMFT) Jennifer Oetinger and had continued seeing LMFT Oetinger for the past four years. According to the defense, Plaintiff stated in her verified responses to Form Interrogatories that she has several specific emotional injuries and distress attributed to the incident.

This court recognizes that Plaintiff's communications with LMFT Oetinger fall squarely within the protection of the Psychotherapist-Patient privilege, pursuant to California Evidence Code §1014. However, Plaintiff has waived the privilege to a limited extent by filing this lawsuit and asserting claims that the incident resulted in emotional distress, ongoing psychological injury and seeks damages for the same arising from the alleged conduct attributed to the Defendant.

“[S]ection 1016 of the Evidence Code, the patient-litigant exception to the psychotherapist-patient privilege, [] provides that: ‘[there] is no privilege under this article as to a communication relevant to an issue concerning the mental or emotional condition of the patient if such issue has been tendered by: (a) the patient’” (*In re Lifschutz* (1970) 2 Cal. 3d 415, 431.) However, courts have found that the exception is not boundless.

[T]he patient-litigant exception allows only a limited inquiry into the confidences of the psychotherapist-patient relationship, compelling disclosure of only those matters directly relevant to the nature of the specific ‘emotional or mental’ condition which the patient has voluntarily disclosed and tendered in [her] pleadings or in answer to discovery inquiries.

(*Id.*)

The California High Court in *Lifschutz* observed the “‘automatic’ waiver of privilege contemplated by section 1016 must be construed not as a complete waiver of the privilege but only as a limited waiver concomitant with the purposes of the exception. Under section 1016 disclosure can be compelled only with respect to *those mental conditions* the patient-litigant has ‘[disclosed] . . . by bringing an action in which *they* are in issue.’” (*Lifschutz, supra*, p. 435 (*emphasis in original*)), citing *City & County of San Francisco v. Superior Court, supra*, 37 Cal.2d 227, 232). “[C]ommunications which are not directly relevant to those specific conditions do not fall within the terms of section 1016’s exception and therefore remain privileged....The patient thus is not obligated to sacrifice all privacy to seek redress for a specific mental or emotional injury; the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant [herself] has brought before the court.” (*Id.*)

“In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities.” (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014; *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 842, quoting *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) “An implicit waiver of a party’s constitutional rights encompasses only discovery *directly relevant* to the plaintiff’s claim and essential to the fair resolution of the lawsuit.” (*Davis, supra*, p. 1014, *Vinson v. Superior Court, supra*, 43 Cal.3d at p. 842.) “Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy.” (*Davis, supra*, p. 1014; *Binder v. Superior Court* (1987) 196 Cal.App.3d 893, 900.) “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.” (*Binder, supra*, pp. 900-901.) “[T]he extent to which a mental component may be in issue in a particular suit depends upon the facts of a particular case. (*Davis, supra*, pp. 1015-1016; *Roberts v. Superior Court, supra*, 9 Cal.3d 330, 338-339.

The burden is on the party seeking the protected information to establish direct relevance. (*Harris v. Superior Court* (1992) 3 Cal.App.4th 661, 665.) In *Davis*, the court found that the “[r]eal party [sought] a broad range of materials” that were not “directly relevant to the condition [petitioner] placed at issue.” (*Davis, supra*, p. 1017.) The *Davis* court observed:

[T]he materials sought must be directly relevant to the issue of pain and suffering associated with the physical injuries petitioner sustained. By limiting her claim for emotional distress to pain and suffering associated with stated physical injuries, and by explaining that the center provided no treatment in connection with the injuries for

which compensation was sought, petitioner established that it is not reasonably probable that the records are directly relevant to the condition she placed in issue.

(*Davis, supra*, p. 1017; citing *Lifschutz, supra*, pp. 436-437.)

However, on balance, courts have found that:

[B]ecause only the patient, and not the party seeking disclosure, knows both the nature of the ailments for which recovery is sought and the general content of the psychotherapeutic communications, the burden rests upon the patient initially to submit some showing that a given confidential communication is not directly related to the issue [s]he has tendered to the court...A patient may have to delimit his claimed 'mental or emotional distress' or explain, in general terms, the object of the psychotherapy in order to illustrate that it is not reasonably probable that the psychotherapeutic communications sought are directly relevant to the mental condition that he has placed in issue.

(*Lifschutz, supra*, 436-437.)

Here, unlike *Davis*, Plaintiff is seeking "compensatory and emotional distress damages according to proof." In response to interrogatories, Plaintiff provided specific continuing conditions of emotional injury and distress related to the conduct attributed to Defendant. Plaintiff started seeing LMFT Oetinger a month after the incident for therapy related to trauma from the incident. This court finds that some of Plaintiff's therapy records would be directly relevant to the claims she has raised and therefore discoverable. However, the court is limiting disclosure on two grounds. First, Defendant's request is overly broad in that it seeks "[a]ll medical records, reports, notes, memoranda, consultations, evaluations, handwritten notes, telephone messages, billing, including any and all lien documents/records, and any correspondence pertaining to the examination and/or treatment of the record subject." Defendant has failed to demonstrate how all this information is directly relevant to Plaintiff's claims for emotional distress. This court would observe that at least some of this information sought would be reasonably probable to contain directly relevant information such as the records, reports, notes, evaluations and handwritten notes. Secondly, Plaintiff may have waived her privilege, but it is not absolute, and this court finds her privacy rights still outweigh an unlimited release of her personal therapy records.

In *Lifschutz, supra*, pp. 436-437, the California Supreme Court balanced the disclosure of these types of communications in lawsuits like that here, with the plaintiff's privacy interests:

In determining whether communications sufficiently relate to the mental condition at issue to require disclosure, the court should heed the basic privacy interests involved in the privilege (cf. *Wiesenberger v. W. E. Hutton & Co.* (S.D.N.Y. 1964) 35 F.R.D. 556, 557-558); in general, the statutory psychotherapist-patient privilege "is to be liberally

construed in favor of the patient.” (Cf. *Carlton v. Superior Court*, *supra*, 261 Cal.App.2d 282, 288; *Newell v. Newell* (1956) 146 Cal.App.2d 166, 177 [303 P.2d 848].)

Furthermore, “because of the intimate and potentially embarrassing nature of such communications, [trial courts] may utilize the protective measures at their disposal to avoid unwarranted intrusions into the confidences of the relationship” even when the evidence is directly relevant to the plaintiff’s alleged mental condition “the codes provide a variety of protections that remain available to aid in safeguarding the privacy of the patient.” (*Lifschutz*, *supra*, pp. 431, 437.)

Exhibit 3 to Plaintiff’s Declaration of Caryn N. Fabian in support of Plaintiff’s Opposition is an email from October 2025 in which Plaintiff’s counsel indicates that “Ms. Oetinger’s records cover much material beyond that which Defendant is entitled to and is necessary for a determination of the amount of Plaintiff’s damages as a result of the incident, and beyond that which a court would order produced.” As such, this court is ordering:

Defendant’s Motion to Compel is GRANTED, but with the modification that the documents shall be produced to the court for an initial in camera review. Further, the court intends to only produce those documents that relate to the conditions that Plaintiff specifically attributes to the incident involving Defendant and to the conditions she provided in her response to interrogatories as those discussions may be relevant to the Plaintiff’s claims for emotional injuries.

The subpoenaed party, LMFT Jennifer Oetinger, are directed to produce the requested documents to defendant’s discovery copying service by May 8, 2026. The service is ordered to not open the records, but rather to deliver them to Department 20, Judge Melissa O’Connell, of the Contra Costa County Superior Court, Wakefield-Taylor Courthouse for the court to conduct the in camera review. The parties will be informed of the result of the in camera inspection once it has been conducted. If any documents are inadvertently produced to defense counsel, defense counsel is ordered that it cannot open those records, but rather should notify plaintiffs’ counsel of the inadvertent disclosure and immediately deliver the records to the court for its inspection.

All records that are subsequently produced to the defense following the in camera review are subject to a protective order to be stipulated to by the parties that: 1) prevents the records from being used or disclosed beyond litigation in this specific matter and 2) prohibits copies of the records from being provided directly to Defendant Lewis.

2. 9:00 AM CASE NUMBER: C25-02190
CASE NAME: BERNARD ORONOS VS. KAISER FOUNDATION HOSPITALS
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND DOCUMENTS
RESPONSIVE TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS
FILED BY: ORONOS, BERNARD DIGNOS
TENTATIVE RULING:

Plaintiff's Motion to Compel is GRANTED, but modified. Defendant is to produce written complaints in response to Plaintiff's modified requests for production Nos. 35-38 by May 29, 2026. However, the written complaints shall be redacted to remove all personal identifying information of any non-party employee complainants. Notice must be provided to all non-party employees prior to, and they must provide an "objection" if they do not wish for Kaiser to share their name, address, e-mail address or telephone number to Plaintiff for investigation into any discrimination practices based on complaints they have submitted against Kaiser in the categories limited by Plaintiff in their request.

Based on Defendant's April 10, 2026, Opposition and Plaintiff's Reply filed April 16, 2026, it appears that Plaintiff is no longer seeking further responses to Requests 15-17, following Defendants supplemental responses. As such that part of Plaintiff's Motion to Compel is Moot.

Plaintiff's Requests No. 35-38, originally sought all documents evidencing written complaints of failure to accommodate, retaliation for requesting or taking medical leave, retaliation for complaining about failure to pay wages against, and retaliation for opposing discrimination, harassment, or retaliation.

On April 9, 2026, Plaintiff agreed to limit his requests to similar complaints filed in the past five years against the same decisionmakers. The court believes that this was an appropriate and reasonable limitation on the evidence sought.

Here, Plaintiff's lawsuit is based on allegations that Defendants discriminated against and ultimately wrongfully terminated Plaintiff. Plaintiff maintains that substantial motivating reasons for Defendant's actions were Plaintiff requesting and/or exercising his right to take sick leave, requesting and taking accommodations and medical leave and opposing discrimination and retaliation. Furthermore, Plaintiff alleges that the Defendants also discriminated against Plaintiff for having a disability. In support of several of Plaintiff's claims, he asserts that Defendant has a pattern and practice of retaliating against employees who engage in protected activities.

In their Answer, Defendant raises a number of defenses including that they did have actual or constructive knowledge of any violation allegedly suffered by Plaintiff; their conduct was not intentional or willful; Defendant would have made the same decision for legitimate,

independent, and/or non-discriminatory/non-retaliatory reasons; all acts of Defendant affecting the terms and conditions of Plaintiff's employment were taken based on an honest belief that Plaintiff's conduct justified any adverse employment action; and at all relevant times, Defendant followed and enforced its policies against unlawful discrimination and retaliation in the workplace.

Defendant maintains that Plaintiff's motion to compel should be denied because they did not submit a separate statement. This is not accurate. Plaintiff filed an appropriate separate statement with their motion to compel on January 13, 2026.

Here, Plaintiff seeks all documents evidencing written complaints by non-party employees of Kaiser for failure to accommodate, retaliation for requesting or taking medical leave, retaliation for complaining about failure to pay wages, and retaliation for opposing discrimination, harassment, or retaliation. It appears that as of April 9, 2026, Plaintiff is requesting all written complaints of the same claims as Plaintiff made at the same facility against the same decision-makers that are in the possession of Defendant's Equal Employment Opportunity investigations unit and Ethics Point department which apparently receives and addresses these types of complaints. The court finds that Plaintiff's most recent proposed limitations of the evidence directly address any concerns by Defendant as to the evidence being overly broad and unduly burdensome, but for one term. This court does agree with Defendant that the word "evidencing" is vague and would be unduly burdensome to comply. Accordingly, the court is limiting the discovery request to "all written complaints by non-party employees."

The court finds the evidence *is* relevant. Plaintiff cites a number of cases concluding that other instances of discrimination against non-party employees are admissible and relevant largely when analyzed pursuant to California Evidence Code §1101, subdivision (b), and therefore are discoverable. "Any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Cal. Code of Civil Procedure §2017.010). Per the evidence code, other crimes, wrongs, bad acts are admissible to establish non-propensity evidence such as intent, knowledge, plan, and motive. (Cal. Evidence Code §1101, subd. (b).) In determining admissibility, the judge must determine varying levels of sufficient similarity between the Plaintiff's case and other crimes, wrongs, and bad acts by the Defendant depending on the theory the Plaintiff elects. Here, Defendant's state of mind has been placed at issue by Defendant in raising several defenses that would go towards their knowledge, intent or motive in how they responded to any actions taken by Plaintiff. Furthermore, several of Plaintiff's claims assert a pattern of practice by Defendants in how they responded to similar complaints to support Plaintiff's causes of action. The evidence of non-party employees' similar complaints against the same facility and same decision-makers

is at a minimum reasonably calculated to lead to the discovery of admissible evidence. Plaintiff is correct in their assertion that the test for admissibility would be employed by the gatekeeper at trial because admissibility would ultimately depend on which theory Plaintiff elects and the requisite level of similarity required for that theory. The level of similarity, however, at this juncture, is not a bar to the evidence being discoverable.

Nonetheless, admissibility of the evidence does not mean that Plaintiff's means for discovering this evidence is appropriate. The court recognizes that Plaintiff's recent limitations of the evidence to similar complaints to Plaintiff's, at Plaintiff's facility and with the same decisionmakers makes the requests narrower and not unduly burdensome, but Defendant's position that it invades the privacy rights of non-party employees has merit.

In *Life Technologies Corp. v. Superior Court* (2011) 197 Cal.App.4th 640 (disapproved of by *Williams v. Superior Court* (2017) 3 Cal.5th 531 on distinguishable grounds), the appellate court considered the trial court's order compelling employee information to be produced in an employment discrimination case. In *Life Technologies Corp.*, the court observed that

Had [the plaintiff] sought the information at issue here by way of a deposition subpoena, instead of through interrogatories, he would have been required to cause a copy of the subpoena duces tecum to be served on the employees/former employees, as well as the declaration in support of the subpoena, along with a detailed privacy notice. (Code Civ. Proc., § 1985.6, subds. (b)-(e).) A nonparty employee/former employee could thereafter 'serve on the subpoenaing party, the deposition officer, and the witness a written objection that cites the specific grounds on which production of the employment records should be prohibited.' (Code Civ. Proc., § 1985.6, subd. (f)(2).) 'No witness or deposition officer shall be required to produce employment records ... after receipt of a written objection from a nonparty employee, except upon order of the court in which the action is pending ' (Code Civ. Proc., § 1985.6, subd. (f)(3).) We do not believe a nonparty employee/former employee should be deprived of such protections simply because the discovery vehicle used is a set of special interrogatories, rather than a subpoena duces tecum.

(*Id.*, at p. 655.)

The California Supreme Court disapproved of the holding in *Life Technologies* only as to a court starting with a "de facto...assumption that such an egregious invasion is involved in every request for discovery of private information." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.) "Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies," applying the considerations articulated in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1. (*Id.*) "What suffices to justify an invasion will...vary according to the context. Only obvious

invasions of interests fundamental to personal autonomy must be supported by a compelling interest.” (*Hill*, supra, at p. 34.)

The appellate court in *Life Technologies* remanded, stating the trial court “failed to provide sufficient notice to the third-party employees/former employees affording them a simple, reasonable means of objecting to the disclosure of their personal information, and failed to provide for the protection of any such information ultimately ordered disclosed.” (*Life Technologies*, supra, p. 656; cf. Code Civ. Proc., § 1985.6, subds. (b)-(f).).

In *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal. App. 4th 554, 561-562, the court found that an opt-out notice in a class action lawsuit was proper when the named parties sought information regarding third-party claims. The court held that while the information was personal, it “was not particularly sensitive, as it was contact information, not medical or financial details. Disclosure of the contact information with an opt-out notice would not appear to unduly compromise either informational privacy or autonomy privacy in light of the opportunity to object to the disclosure, as the court specifically found that there was no evidence of any actual or threatened misuse of the information.” (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal. App. 4th 554, 561-562; citing *Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 372=373; *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 40.)

This court observes that here the information sought is personal *and* can be particularly sensitive in that it would contain one’s medical conditions or other private basis for requiring an accommodation. Indeed, Plaintiff asserts in his complaint that he has suffered and continues to suffer embarrassment, humiliation and mental anguish because of Defendants’ alleged conduct, the same harm would be expected for non-party employees that have similar complaints. In balancing Plaintiff’s interest in obtaining this evidence with the non-party employee’s privacy interests in the personal information that could be contained in these written complaints, this court is ordering the Defendant to disclose written complaints that relate to the same facility, same decision-makers and similar complaints to Plaintiff’s with redactions of all personal identifying information of the complainant by May 29, 2026.

The personal identifying information shall only be provided to Plaintiff after notice is provided by the Defense to the non-party employees giving them an opportunity to object to the release of their information related to this lawsuit, assuming no objection is provided by the non-party employee.

3. 9:00 AM CASE NUMBER: MSC21-01498
CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
***HEARING ON MOTION FOR DISCOVERY FOR ORDER TO COMPEL FURTHER RESPONSES FOR PRODUCTION OF DOCUMENTS**

FILED BY:

TENTATIVE RULING:

Vacated by the parties due to conditional settlement.

PASTERULESHERE

Courtroom Clerk's Session

4. 9:30 AM CASE NUMBER: N25-2392
CASE NAME: SARAH LANGLAIS VS. SONYA CRAWFORD
HEARING ON REQUEST FOR RESTRAINING ORDER GUN VIOLENCE
FILED BY:
TENTATIVE RULING:

Parties are to appear in person for hearing.

5. 1:30 PM CASE NUMBER: C23-01776
CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
SETTLEMENT CONFERENCE IN DEPT 20 IN-PERSON
FILED BY:
TENTATIVE RULING:

Parties agreed to move settlement conference to a later date due to pending motion on May 20, 2026.